

## বাংলাদেশ সুপ্রীমকোর্ট

## হাইকোর্ট বিভাগ

আপীল সম্পর্কিত

ফৌজদারী

জেলা: **Bogura**ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন  
নং**Md. Rasel Miah**

আবেদনকারী

মাধ্যম

**Mr. Md. Khurshid Alam**, Advocate

বনাম

The State

**Mr. M.D. Rezaul Karim**, D.A.G along with

Mr. Ashraf Uddin Khan, A.A.G

Ms. Ferdousi Akter, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডাদেশ

**Present**

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

| কাগজপত্র বা আদেশের<br>ক্রমিক নং | তারিখ             | নোট এবং আদেশ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | স্বাক্ষর |
|---------------------------------|-------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
|                                 | <u>01.04.2024</u> | <p>Records be called for.</p> <p>Let the realization of fine be stayed.</p> <p>Let a rule be issued calling upon the opposite party to show cause as to why the Judgment and order dated 20.03.2024 passed by the learned Senior Sessions Judge, Bogura in Criminal Appeal No. 174 of 2024 dismissing the appeal summarily on the ground of limitation and thereby affirming the judgment and order of conviction and sentence dated 19.12.2023 passed by the learned Senior Judicial Magistrate, Court No. 04, Bogura in G.R Case No. 1290 of 2018 arising out of Bogura Sadar Police Station Case No. 50 dated 13.10.2018 convicting the petitioner under Table 9(Ka) of section 19(1) of the Madok Drabbya Niyontron Ain, 2018 and sentencing him to suffer rigorous imprisonment for 06(six) months and also pay to fine of Tk. 1000 (one thousand) in default to suffer simple imprisonment for 05 (five) days more should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.</p> |          |

| নোট বা আদেশের<br>ক্রমিক নং | তারিখ | নোট ও আদেশ                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|----------------------------|-------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                            |       | <p>Pending disposal of the rule, let the convict petitioner <b>Md. Rasel Miah, son of Md. Kochim Uddin</b> be enlarged on ad-interim bail till disposal of the rule on furnishing bail bond to the satisfaction of the learned Senior Judicial Magistrate, Court No. 04, Bogura.</p> <p>The rule is made returnable within 4(four) weeks from date.</p> <p>The petitioner shall put in 2(two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules.</p> <p>Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in (vide HCD Rules, Chapter IV Rule 3(6)).</p> |
|                            |       | Kashem/B.o                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |